

DAMAGE, PART LOSS, AND TOOL PENALTY COMMISSION DEDUCTION AGREEMENT

Employee Name: _____

Position / Title: _____

Effective Date: _____

As a W-2 employee of **US In Home Services** ("the Company"), I acknowledge, understand, and agree to the following terms regarding commission penalties, deductions, and financial accountability in the event of property damage, part loss, or tool damage resulting from my negligence or failure to follow Company policies:

1. Customer Property Damage (Physical Damage)

- If property or physical damage occurs at a customer's home due to my negligence, failure to follow safety protocols (such as mandatory floor protection), or improper handling:
 - I may be held financially responsible for up to **50% of the total cost of damages**.
 - To the extent permitted by applicable federal and state laws, this penalty amount may be applied as a deduction or withholding from my earned commissions and/or spread across multiple pay periods (multiple months) as necessary until the penalty amount is fully recovered.

2. Part Loss and Tool Damage

- If company parts are lost, misplaced, or mishandled, or if company-provided tools are damaged due to my negligence, misuse, or failure to secure them properly:
 - I may be held financially accountable for the replacement or repair cost.
 - Similar to physical damage penalties, this cost may be recovered through commission deductions, which can be distributed across multiple months/pay periods as required, to the extent permitted by applicable law.

3. Compliance and Acknowledgment

- I understand that these commission deductions are strictly administrative recovery mechanisms for financial losses caused by policy violations or negligence, and are applied in compliance with applicable labor laws.
- Repeated incidents of property damage, part loss, or tool damage will result in further disciplinary action, up to and including termination of employment.

By signing below, I acknowledge that I have read, understood, and voluntarily agree to the terms of this Damage, Part Loss, and Tool Penalty Commission Deduction Agreement.

Employee Signature: _____ **Date:** _____

Employer Representative Signature: _____ **Date:** _____